

BENIN 2022 HUMAN RIGHTS REPORT

EXECUTIVE SUMMARY

Benin is a constitutional presidential republic. In April 2021, voters re-elected Patrice Talon to a second five-year term as president in a multiparty election. Electoral code registration and sponsorship requirements precluded most opposition political parties from participating in the election. In November 2022, the Constitutional Court made a ruling that provides for the political opposition to participate in the January 2023 legislative elections and paved the way for participation. The government also enacted a 2019 law that added 24 seats – reserved exclusively for women legislators – to the National Assembly.

The Beninese Armed Forces under the Ministry of Defense are responsible for external security and support the Republican Police in maintaining internal security. The Republican Police are under the Ministry of Interior and have primary responsibility for enforcing law and maintaining order. Civilian authorities generally maintained effective control over security forces. In 2022, communities in northern Benin experienced an increase in violent extremist organization activities, and Benin's security forces engaged in operations against them. There were reliable reports members of the security forces committed some abuses.

Significant human rights issues included credible reports of: unlawful or arbitrary killings, including extrajudicial killings; harsh and life-threatening prison conditions; arbitrary arrest or detention; political prisoners or detainees; serious problems with the independence of the judiciary; serious restrictions on free expression and media, including censorship and the enforcement of and threats to enforce criminal libel laws; substantial interference with freedom of peaceful assembly and freedom of association; lack of investigation of and accountability for gender-based violence, including domestic and intimate partner violence, sexual violence, and child, early, and forced marriage; and child labor. In 2022, the Court for the Repression of Economic and Terrorism Infractions provisionally released a total of 47 political prisoners from jail. Opposition figures Reckya Madougou and Joel Aivo remain incarcerated.

The government took some steps to identify, investigate, prosecute, and punish officials who committed human rights abuses and acts of corruption. Authorities sometimes held police accountable for misconduct for corruption-related crimes, but impunity remained a problem.

In December 2021, the Benin Human Rights Commission, a government agency, issued a report expressing concern for the rights of vulnerable groups and specifically included lesbian, gay, and transgender persons.

Section 1. Respect for the Integrity of the Person

a. Arbitrary Deprivation of Life and Other Unlawful or Politically Motivated Killings

There were several credible reports from civil society groups that police and military members used disproportionate and lethal force against citizens.

In October 2022, there were credible reports of Beninese Armed Forces killing Fulani herders suspected of association with violent extremist organizations.

In early April 2021, while attempting to disperse protesters ahead of the presidential election, security force members reportedly shot and killed at least five individuals. Later in the month, the Ministry of Interior released a statement acknowledging the reports but claimed no bodies were discovered and no deaths registered. The Beninese Human Rights Commission, an independent government agency, stated it would investigate the accusations and issue a report on its findings. In December 2021, the commission issued its *2020-21 Human Rights Report* that cited at least five deaths, including three in the commune of Bante and at least two in the commune of Save. Some of the victims were killed by members of the security and defense forces. As of December 2022, authorities had not released two of the bodies to family members and police had not opened investigations into the deaths.

Authorities had yet to investigate the killings of civilians in connection with the 2019 legislative elections during which civil society groups stated police and military members used disproportionate force against protesters. Although the government stated at the time it would launch investigations of police and military

personnel involved, it had not done so by year's end.

b. Disappearance

There were no reports of disappearances by or on behalf of government authorities.

c. Torture and Other Cruel, Inhuman, or Degrading Treatment or Punishment, and Other Related Abuses

The constitution and law prohibit such practices, but such incidents continued to occur. For example, on December 16, 2022, government officials took a prisoner to the National University Hospital in Cotonou for treatment. The prisoner was strapped to a chair and died.

Authorities sometimes held police accountable for misconduct for corruption-related crimes, but impunity remained a problem. The Inspectorate General of the Republican Police Investigation Division is responsible for investigating serious cases involving police personnel. The government provided some human rights training to security forces, often with foreign or international donor funding and assistance.

Prison and Detention Center Conditions

Prison conditions were harsh and life threatening due to overcrowding, unsanitary conditions, and inadequate medical care and food. The nongovernmental organization (NGO) Social Change Benin stated prisoners suffered poor treatment and confinement to overcrowded cells.

Abusive Physical Conditions: According to the Benin Bar Association, conditions in the country's three prisons and eight jails were inhuman due to overcrowding, malnutrition, and poor sanitation. The 11 facilities held approximately 12,000 inmates, significantly exceeding a capacity of 5,620 inmates. Convicted criminals, pretrial detainees, and juveniles were often held together. Inmates died due to lack of medical care, neglect, and poor ventilation in cramped and overcrowded cells. Prison facilities did not provide support to inmates with disabilities, including those with mental disabilities.

According to the *Social Change Benin 2022* report, there were five deaths each month in Kandi and Natitingou prisons in the north of the country due to physical conditions and poor quality of food and health-care services. Authorities sometimes took remedial action.

On January 6 and August 2, 2022, to reduce overcrowding, the president pardoned 849 prisoners charged with minor criminal offenses or misdemeanors.

Administration: Authorities conducted investigations of alleged mistreatment upon instruction by the Beninese Human Rights Commission. Prison authorities reduced visitor access due to the COVID-19 pandemic during the year. According to NGO reports, prison officials sometimes charged visitors a fee that was substantial for the average person.

Independent Monitoring: The government permitted prison visits by human rights monitors. Representatives of Social Change Benin and the Beninese Human Rights Commission were able to visit prisons. Amnesty International, however, was not granted permission to conduct prison visits. Nonetheless, some NGOs complained unannounced prison visits were not permitted due to COVID-19 pandemic mitigation measures. They stated the COVID-19 mitigation measures remained in place as pretext to prevent human rights monitoring.

d. Arbitrary Arrest or Detention

The constitution and law prohibit arbitrary arrest and detention and provide for the right of any person to challenge the lawfulness of his or her arrest or detention in court. Nevertheless, police occasionally failed to observe these prohibitions. A person arrested or detained, regardless of whether on criminal or other grounds, is by law entitled to file a complaint with the liberty and detention chamber of the relevant court. The presiding judge may order the individual's release if the arrest or detention is deemed unlawful.

The Constitutional Court ruled in favor of claimants in several cases accusing the government of violating the constitution by holding defendants in pretrial detention. On July 28, 2022, the court ruled that the rights of Antonin Agbodossindji were violated when he was held in prolonged pretrial detention for four years.

Arrest Procedures and Treatment of Detainees

The constitution requires arrest warrants based on sufficient evidence and issued by a duly authorized judicial official and requires a hearing before a magistrate within 48 hours of arrest, but these requirements were not always observed.

After examining a detainee, a judge has 24 hours to decide whether to continue to detain or release the individual. Under exceptional circumstances, or in arrests involving illegal drugs, a judge may authorize detention beyond 72 hours not to exceed an additional eight days. Warrants authorizing pretrial detention are effective for six months and may be renewed every six months until a suspect is brought to trial. Detainees have the right to prompt judicial determination of the legality of detention, which was generally observed. Detainees awaiting judicial decisions may request release on bail and have the right to prompt access to a lawyer. Suspects were not detained incommunicado or prevented access to an attorney, although there were reports attorney-client communications in prisons were monitored.

There were credible reports of individuals held beyond the legal limit of 48 hours of detention before a hearing, sometimes by more than a week. Authorities often held persons indefinitely “at the disposal of” the Public Prosecutor’s Office before presenting the case to a magistrate.

The government often did not provide counsel to indigent defendants in criminal cases. Persons in rural areas accused of serious crimes often lacked adequate legal representation because defense attorneys were predominantly based in Cotonou and generally did not work on cases in rural areas.

Arbitrary Arrest: Arbitrary arrests and detentions occurred. During the year, authorities targeted members of the Fulani ethnic group through arbitrary arrests allegedly on the grounds of protecting state security and fighting violent extremism. In March 2022, Amnesty International reported police arrested a 70-year-old man in Tanguieta and detained him for two weeks without charge.

Pretrial Detention: The law limits the maximum length of pretrial detention for felony cases to five years’ incarceration and for misdemeanors to three years’ incarceration. Approximately two-thirds of inmates were pretrial detainees. The

length of pretrial detention frequently exceeded the maximum sentence for conviction of the alleged crime. Detainees held beyond pretrial limits may seek recourse from the Constitutional Court.

On June 10, 2022, the Constitutional Court ruled Dominique Agossou's pretrial detention was arbitrary because no judicial official issued a warrant prior to his arrest. Agossou was charged with theft and unlawful possession of a firearm.

e. Denial of Fair Public Trial

The constitution and law provide for an independent judiciary; however, the president heads the High Council of the Judiciary that governs and sanctions judges. Corruption also afflicted the judicial system, although the government continued to make anticorruption efforts, including the dismissal and arrest of government officials allegedly involved in corruption scandals. Authorities generally respected court orders.

In December 2022, police detained and charged a journalist for spreading false information after he published an article about alleged police extrajudicial killings. The journalist was later granted provisional release prior to his February 2023 trial. In July 2022, police detained a civil society activist for inciting rebellion and violence, contempt of state authority, and calling for defiance by electronic means. Authorities later released him.

In December 2021, following one-day trials based on virtually no evidence, the Court for the Repression of Economic and Terrorism Infractions (CRIET) convicted opposition presidential candidates Joel Aivo of money laundering and crimes against the security of the state and Reckya Madougou of terrorist financing. CRIET sentenced Aivo to 10 years' imprisonment and Madougou to 20 years' imprisonment. Madougou was not permitted to question key witnesses and one of her attorneys refused to participate in the trial after publicly questioning CRIET impartiality.

Trial Procedures

While the constitution provides for the right to a fair trial, judicial inefficiency and corruption impeded the exercise of this right.

The legal system is based on French civil law and local customary law. A defendant is presumed innocent. Defendants enjoy the right to be informed promptly and in detail of the charges, with free interpretation as necessary, to a fair, timely, and public trial, to be present at trial, and to representation by an attorney.

By law, courts must provide indigent defendants with counsel upon request in criminal cases. Government-provided counsel, however, was rarely available, especially in court cases in remote areas. Defendants who cannot understand or speak French are entitled to free interpretation services as necessary from the moment charged through all appeals. Defendants enjoy the right to adequate time and facilities to prepare a defense, to present witnesses and evidence on their own behalf, and to not to be compelled to testify or confess guilt.

Defendants may appeal criminal convictions to both the Court of Appeals and the Supreme Court, after which they may appeal to the president for a pardon. If convicted by CRIET, defendants may appeal to its appellate chamber.

Political Prisoners and Detainees

On two occasions throughout the reporting period, CRIET released political prisoners during the year. In June it granted provisional release to 17 of President Talon's political opponents detained since 2020 under terrorism, drug smuggling, and coup plotting charges. In July 2022, during the French president's visit to Benin, CRIET provisionally released 30 political opponents; however, high-profile political opponents Reckya Madougou and Joel Aivo both remained imprisoned at year's end.

There were numerous reports of political prisoners or detainees. The government reported 123 persons arrested during the 2021 presidential elections period; these arrests were widely viewed as politically motivated. As of October 2022, approximately 30 political prisoners had been convicted and sentenced. The NGO the Defense of Human and Peoples' Rights reported there were political prisoners at the Cotonou, Parakou, Abomey, and Akpro-Misserete Prisons. Purported charges against political prisoners included terrorism, financing terrorism, and threatening state security.

On November 2, 2022, the UN Human Rights Council released its opinion on the detention and conviction of Reckya Madougou. Its Working Group on Arbitrary Detention found that Madougou's imprisonment was arbitrary and in violation of the Universal Declaration of Human Rights and the International Covenant on Civil and Political Rights. The working group requested that the government immediately release Madougou and provide her with restitution.

Civil Judicial Procedures and Remedies

By law individuals or organizations may seek effective civil remedies for human rights abuses through a domestic court or through administrative or other mechanisms. The Beninese Human Rights Commission may issue recommendations to state actors but may not impose financial penalties or award compensation. If administrative or informal remedies are unsuccessful, a citizen may file a complaint concerning an alleged human rights abuse with the Constitutional Court. A Constitutional Court ruling is not binding on courts; however, citizens may cite rulings from the Constitutional Court to initiate legal action against offenders in regular courts. Adverse court rulings other than those of the Constitutional Court may be appealed to the Economic Community of West African States (ECOWAS) Court of Justice.

f. Arbitrary or Unlawful Interference with Privacy, Family, Home, or Correspondence

The constitution and law prohibit such actions, and the government generally respected these prohibitions. The law on intelligence gathering provides the government broad authority to collect intelligence in the public interest and for national security purposes.

g. Conflict-related Abuses

According to the *Conduct in UN Field Missions* web platform, there was one allegation submitted in 2021 of sexual exploitation and abuse by Beninese peacekeepers deployed to the UN Organization Stabilization Mission in the Democratic Republic of the Congo (MONUSCO). There were seven total open allegations from prior years of sexual exploitation and abuse by Beninese

peacekeepers deployed to UN peacekeeping missions, including one in 2021; three in 2020; and one each in 2019, 2018, and 2016. As of September 2022, the government had yet to report on any accountability measures taken in two substantiated cases (one concerning sexual exploitation of an adult by a Beninese police officer deployed to the UN Integrated Stabilization Mission in the Central African Republic (MINUSCA), and one concerning sexual exploitation of an adult by a Beninese police officer deployed to the since-closed UN Stabilization Mission in Haiti. All five pending investigations cases involved allegations of exploitative relationships with adults involving Beninese military officers in MONUSCO (three), MINUSCA (one), and the UN Integrated Stabilization Mission in Mali (one).

Section 2. Respect for Civil Liberties

a. Freedom of Expression, Including for Members of the Press and Other Media

The constitution provides for freedom of expression, including for members of the media, and the government generally respected this right. Media were not fully independent, however. There were reports the government inhibited freedom of the press through restrictions on and sanctioning of media members. Many public and private media outlets refrained from openly criticizing government policy.

The government regulated the press and online media. The High Authority for Audiovisual and Communication (HAAC) is a quasigovernmental commission with members appointed by the president, private media, and the legislature. HAAC has a dual role of providing for press freedom while protecting the country against “inflammatory, irresponsible, or destabilizing” media reporting.

HAAC continued its suspensions of broadcasters Sikka TV and Soleil FM, outlets belonging to Sebastien Ajavon. In November 2021, HAAC transferred the frequency used by Soleil FM to another radio station.

Violence and Harassment: On May 18, 2022, Beninese journalist Flore Nobime and Dutch journalist Olivier Van Beemen were detained for four days and accused of espionage following their attempts to interview local populations affected by the

spread of violent extremist organization activity in the north of the country. Espionage charges were dropped soon after and Van Beeman left the country under police escort.

According to the Committee to Protect Journalists, on December 19, 2022, police arrested Virgil Ahouansè, director of an internet radio station, and charged him under the digital code with spreading false news on December 14, 2022, accusing police of carrying out extrajudicial killings. He was questioned for more than five hours before being released on bail after two days detention.

In April 2021, police arrested journalist and blogger Nadine Okoumassoun. The CRIET prosecutor charged Okoumassoun with terrorism and inciting violence. On July 27, 2022, Okoumassoun was granted provisional release pending further investigation.

On July 4, 2022, the newspaper *La Nouvelle Tribune* resumed publication following HAAC's August 2021 decision lifting a 2018 ban.

According to the Committee to Protect Journalists, in 2019 police arrested Casimir Kpedjo for "spreading false information about the Beninese economy" and held him for five days. He was then charged by CRIET with publishing "false information," and released. On March 14, 2022, CRIET found it did not have jurisdiction in the case.

Censorship or Content Restrictions for Members of the Press and Other Media, Including Online Media: Public and private media refrained from openly criticizing government policy or reporting on security concerns. Some journalists practiced self-censorship because they were indebted to government officials who granted them service contracts. Media outlets practiced self-censorship due to fear the government would suspend their licenses. HAAC held public hearings on alleged misconduct by media outlets during the year.

Libel/Slander Laws: By law, journalists may be prosecuted for libel and slander. Journalists may also be prosecuted for harassment based on true statements, incitement of violence and property destruction, and compromising national security through the press. Penalties for conviction include incarceration and fines. By law, anyone convicted of libel, harassment, or both using electronic means may

be sentenced to between one and six months in prison and receive a substantial fine.

National Security: Authorities reportedly cited national security interests to deter reporting on violent extremism.

Internet Freedom

The government censored online content, but it did not restrict public access to the internet or monitor private online communications without appropriate legal authority. The law states operation of “a website providing audiovisual communication and print media services intended for the public is subject to the authorization” of HAAC.

b. Freedoms of Peaceful Assembly and Association

The constitution and law provide for the freedoms of peaceful assembly and association; the government respected the right of peaceful association but not that of peaceful assembly.

Freedom of Peaceful Assembly

The law provides for the right of peaceful assembly; however, the government did not respect this right.

In 2021 authorities sometimes cited “public order” to prevent demonstrations by opposition groups, civil society organizations, and labor unions. The law prohibits unauthorized gatherings likely to disrupt public order. Advance notification and permits are required prior to holding protests, but authorities regularly denied or ignored requests for permits.

c. Freedom of Religion

See the Department of State’s *International Religious Freedom Report* at <https://www.state.gov/religiousfreedomreport/>.

d. Freedom of Movement and the Right to Leave the Country

The law provides for freedom of internal movement, foreign travel, emigration, and repatriation, and the government generally respected these rights.

e. Protection of Refugees

The government cooperated with the Office of the UN High Commissioner for Refugees (UNHCR) and other humanitarian organizations in providing protection and assistance to refugees, returning refugees, or asylum seekers, as well as other persons of concern. As of August 2022, there were 1,778 refugees in the country. UNHCR received reports humanitarian organizations could not assist many asylum seekers and persons of concern along the northern border due to security concerns.

Access to Asylum: The law provides for the granting of asylum or refugee status, and the government has established a system for providing protection to refugees. On August 31, 2022, UNHCR reported 1,185 asylum seekers in the country.

Durable Solutions: The government accepted refugees for resettlement, offered naturalization to refugees residing on their territory, and assisted in their voluntary return to their homes. The government involved civil society in the process. The government National Commission of Assistance to Refugees cooperates with UNHCR through the UNHCR Multi-Country Office in Dakar, Senegal.

Temporary Protection: The government also provided temporary protection to individuals who may not qualify as refugees and provided it to approximately 3,000 persons.

f. Status and Treatment of Internally Displaced Persons

According to the Internal Displacement Monitoring Center, throughout the year there were approximately 8,000 individuals temporarily displaced because of seasonal flooding and security concerns in the Mono, Zou, Atacora, and Alibori Departments. The government provided humanitarian assistance through its National Agency for Civil Protection and cooperated with humanitarian groups to aid internally displaced persons.

g. Stateless Persons

There were large communities of stateless individuals residing in eight villages along the border with Niger and Nigeria. These villages were returned to Benin following the resolution of land disputes among Benin, Niger, and Nigeria. The law affords the opportunity to acquire or confirm nationality; however, these villagers lacked the necessary identification documents to claim citizenship.

Section 3. Freedom to Participate in the Political Process

The constitution and law provide citizens the ability to choose their government in free and fair periodic elections held by secret ballot and based on universal and equal suffrage. In November 2022, the Constitutional Court ruled the government Tax Authority failed to provide tax clearance forms in a timely manner required for opposition party candidates to register by the deadline to compete in January 2023 legislative elections. The court ordered that they must be allowed register to compete in the elections.

Elections and Political Participation

Recent Elections: The April 2021 presidential election, the most recently completed election during the reporting period, excluded candidates from established opposition parties. Voter turnout declined from 65 percent in 2016 to 27 percent according to the independent Electoral Platform of Civil Society Organizations and by 50 percent according to the government's Independent National Electoral Commission. The Independent National Electoral Commission reported voting did not take place in 16 of 546 districts due to violent demonstrations that prevented delivery of voting materials.

According to human rights activists, police in Tchaourou physically prevented voting. During the campaign and immediately following the presidential election, police arrested more than 200 activists, opponents, and journalists, according to human rights organizations. ECOWAS observers, however, released a statement declaring the "voting process took place in an orderly, transparent, and professional manner." African Union observers released a statement calling the election "peaceful," and International Francophone Organization observers

released a statement stating the “election complied with the legal measures but without participation of all political parties.”

Legislative elections in 2019 excluded opposition parties; voter turnout was only 27 percent. Although there were incidents of voter interference by opposition demonstrators, election-day voting proceeded calmly in most of the country. Protesters in opposition strongholds in the central part of the country blocked some roads for much of the day, and media reported demonstrators in Parakou burned ballot materials at polling stations and prevented some citizens from voting. The government implemented an internet blackout on election day of social media sites, including WhatsApp, Facebook, Twitter, Instagram, and iMessage.

Political Parties and Political Participation: Only three candidates qualified for the 2021 presidential election. Prior to the election, the Independent National Election Commission disqualified 17 of the 20 presidential candidates who had submitted applications, citing failure to meet various application requirements, including obtaining at least 16 sponsorships from National Assembly deputies and mayors, designating a vice presidential running mate, and paying a 50 million CFA francs (\$82,000) registration fee.

Participation of Women and Members of Minority Groups: By law, 24 additional National Assembly seats were reserved for women legislators in concert with the January 2023 elections and correspondingly increasing the number of women candidates on party list.

In 2021 voters elected Mariam Talata as vice president, the first woman to hold that position. Cultural factors, however, limited women’s political participation. By custom and tradition, women assumed household duties, had less access to formal education, and were discouraged from involvement in politics. According to the Electoral Platform of Civil Society Organizations, 11 percent of women voted in the presidential election. There were reports persons with motor disabilities were unable to access polling stations due to a lack of ramps and other means of access. There were also reports no measures were taken at polling stations to assist blind persons to complete their ballots (see section 6). Overall, no laws limit the participation of women and members of minority groups in the political process, and they do participate.

Section 4. Corruption and Lack of Transparency in Government

The law provides for criminal penalties for corruption by officials, and the government sometimes implemented the law effectively; however, there were numerous reports of government corruption during the year, and officials frequently engaged in corrupt practices with impunity. It was commonly believed, and acknowledged by some judicial personnel, the judicial system at all levels was susceptible to corruption.

Corruption: According to the newspaper *Matin Libre*, traffic police routinely solicited bribes from truckers in exchange for not enforcing the law against overloaded and unsafe vehicles.

The government took several actions during the year to combat official corruption. For example, on April 7, 2022, CRIET convicted Urbain Kanlisou, a former secretary general of Port Agents Union of abuse of office and sentenced him to five years in prison and a fine of 100 million CFA francs (\$163,000) while he was in office. On July 18, 2022, CRIET also sentenced an official of the Financial and Economic Squad, Bissaloue Yerima, to seven years in prison and a small fine for conviction of theft and money laundering while serving as the president of the Port Workers' Mutual Company.

Section 5. Governmental Posture Towards International and Nongovernmental Investigation of Alleged Abuses of Human Rights

Several domestic and international human rights groups generally operated without government restriction, investigating and publishing their findings on human rights cases. Government officials often were cooperative and responsive to their views. Nevertheless, the government denied permits to some domestic human rights groups critical of government actions. Human rights groups reported they did not share all their findings publicly due to fear of government reprisal.

Government Human Rights Bodies: The Beninese Human Rights Commission

has the power to investigate human rights complaints, issue instructions to government officials, and publish an annual human rights report. The country also had an ombudsman responsible for responding to citizen complaints of maladministration who was independent, adequately resourced, and effective.

Section 6. Discrimination and Societal Abuses

Women

Rape and Domestic Violence: The law prohibits rape without reference to gender. Enforcement was weak due to police ineffectiveness, official corruption, and survivors not reporting cases due to fear of social stigma and retaliation. Sentences for conviction of rape range from five to 20 years' imprisonment. The law explicitly prohibits spousal rape and provides the maximum penalty for conviction of raping a domestic partner. Because of the lack of police training in collecting evidence associated with sexual assaults, ignorance of the law, and inherent difficulties survivors faced in preserving and presenting evidence in court, judges reduced most sexual offense charges to misdemeanors. The primary form of evidence used to prove sexual assault required physician certification. Since physicians were only accessible in large cities, survivors in rural areas were effectively precluded from pursuing charges.

Penalties for conviction of domestic violence range from six to 36 months' imprisonment. Nevertheless, domestic violence against women was common. Women remained reluctant to report cases, and judges and police were reluctant to intervene in cases of domestic violence.

The Ministry of Social Affairs provided financial support to some survivors of abuse. The ministry's Centers for Social Promotion provided mediation services that in some cases resulted in restitution. The ministry also organized public outreach campaigns to raise public awareness of violence against girls and women. During the year, the Ministry of Health and the Ministry of Social Affairs conducted a services-training program for survivors of rape, domestic violence, and other forms of gender-based violence (GBV) for health-clinic and social-service first responders. In July 2021, the government created the National Institute for Women (INF) to address complaints of violations of women's rights

and provide financial assistance to survivors of GBV. From September 2021 to August 31, 2022, INF recorded 156 complaints from the cities of Cotonou, Parakou, Savalou, and Abomey Calavi.

Female Genital Mutilation/Cutting (FGM/C): The law prohibits FGM/C of girls and women and provides penalties for conviction of performing the procedure, including prison sentences of up to 10 years and substantial monetary fines. Nevertheless, FGM/C occurred, and enforcement was rare due to the code of silence associated with this crime. The practice was largely limited to remote rural areas in the north. According to UNICEF, 7 percent of girls and women ages 15 to 49 underwent FGM/C in 2018.

The government, in conjunction with NGOs and international partners, continued to raise public awareness of the dangers of the practice.

Sexual Harassment: The law prohibits sexual harassment and offers protection for victims, but sexual harassment was common in the workplace and in schools. Persons convicted of sexual harassment face sentences of one to two years' imprisonment and substantial monetary fines. The law also provides for penalties applicable to persons who are aware of sexual harassment but do not report it. Survivors, however, seldom reported harassment due to fear of social stigma and retaliation; furthermore, police, examining magistrates who conduct pretrial investigations, and prosecutors lacked the legal knowledge and capacity to pursue such cases. Although laws prohibiting sexual harassment were not widely enforced, judges used other provisions in the penal code to address sexual abuses involving minors. On June 3, 2022, the prosecutor at CRIET charged three teachers from the National School of Applied Economics and Management with sexual harassment based on a complaint filed by INF.

Reproductive Rights: There were no reports of coerced abortion or involuntary sterilization on the part of government authorities.

In October 2021, the National Assembly passed amendments to the 2003 Law on Sexual and Reproductive Health legalizing elective abortion. The amendments went into effect in December 2021. The amended law provides for termination before 12 weeks if the pregnancy is likely to aggravate or cause a situation of

material, educational, professional, or moral distress incompatible with the interest of the woman, the unborn child, or both.

The taboo and persisting stigma associated to menstruation, lack of access to information on menstrual hygiene affect girls' social, economic, and academic well-being.

A 2020 survey of 2,500 female students conducted by an NGO found that 27 percent of them missed classes because of menstruation.

Societal pressures created barriers to contraception. Although girls have the legal right to access contraception without parental consent, health-care workers sometimes impeded access by requiring parental consent. Cultural norms also influenced low rates of contraception. In some areas, notably the Plateau Department bordering Nigeria, traditional leaders used voodoo to threaten women to stay indoors during contraceptive campaigns, according to the Beninese Association for Social Marketing. Some religious groups strongly discouraged the use of contraceptives. Poor access to reproductive health information in rural areas, poverty, and limited formal education contributed to low usage of contraceptives and high pregnancy rates. Only 13 percent of girls and women between ages 15 and 49 used a modern method of contraception, and 35 percent of women had an unmet need for contraception.

The government provided access to sexual and reproductive health services for survivors of sexual violence; however, lesbian, gay, bisexual, transgender, queer, or intersex (LGBTQI+) persons reported being routinely refused medical care and social services. Individuals were informed and had access to safe effective and affordable methods of family planning and contraception of their choice through public outreach campaigns and planning services provided by public hospitals. Not all methods, however, were available to women in rural areas, particularly methods required by a nurse or a doctor to stay in place. The Beninese Association for Family Promotion, a nonprofit association, offered a wide range of family and sexual and reproductive health services to the population. It offered family planning, antenatal, and postabortion services and care and infertility treatment, screening of cancers of the reproductive system, and management of sexually transmitted infections (including HIV and AIDS). In 2021 the association reported

it provided 362,552 family planning related services.

According to the government's *2017-2018 Demographic Health Survey*, the maternal mortality rate was 391 deaths per 100,000 live births. Factors contributing to the high mortality rate were deliveries without adequate medical assistance, lack of access to emergency obstetric care, and inadequate sanitation and infection prevention control. According to the survey, 84 percent of live births took place in a health center (most of which were public), and 20 percent of adolescent girls between ages 15 and 19 were either pregnant or had already had one live birth. These rates varied dramatically with higher adolescent birth rates (24 to 38 percent) in northern departments and lower rates (ranging from 8 to 16 percent) in southern departments. See also the Female Genital Mutilation/Cutting (FGM/C) subsection for additional information.

Discrimination: Although the constitution provides for equality of women in political, economic, and social spheres, women experienced extensive discrimination in obtaining employment, credit, equal pay, and in owning or managing businesses. There were legal restrictions on women in employment, including limitations on the occupations in which women are allowed to work (see section 7.d.).

The law bans all discrimination against women in marriage and provides for the right to equal inheritance. The government and NGOs educated the public on women's inheritance and property rights and their increased rights in marriage, including prohibitions on forced marriage, child marriage, and polygamy. The government did not enforce the law effectively, however.

Systemic Racial or Ethnic Violence and Discrimination

The constitution and laws provide for the protection of religious and ethnic minorities and their institutions from violence and discrimination. The penal code provides for the protection of religious and ethnic minorities from physical violence, genocide, and crimes against humanity. The labor code provides for the protection of religious and ethnic minorities from employment discrimination.

Amnesty International reported members of the Fulani ethnic group were at greater risk of human rights abuses, particularly arbitrary detention by police.

Children

Birth Registration: Citizenship is derived by birth within the country to a citizen father. By law, the child of a Beninese father is automatically considered a citizen, but the child of a Beninese woman is considered Beninese only if the child's father is unknown, has no known nationality, or is also Beninese. Particularly in rural areas, parents often did not declare the birth of their children, either from lack of understanding of required procedures or because they could not afford the fees for birth certificates. This could result in denial of public services such as education and health care.

On November 29, 2022, the National Assembly passed a nationality code drafted in 2017 to replace the 1965 Nationality Code, which the country's Supreme Court and Constitutional Court found discriminatory against women. Anticipated to be signed into law by President Talon in early 2023, it provides for a child born to a Beninese mother to receive Beninese citizenship regardless of the nationality of the child's father.

Education: Primary education is compulsory for all children between ages six and 11. Public school education is tuition free for all primary school students and for girl students through grade nine in secondary schools. Girls did not have the same educational opportunities as boys and the literacy rate for women was 18 percent, compared with 50 percent for men. In some parts of the country, girls received no formal education.

Child Abuse: Violence against children was common. The law bans a wide range of harmful practices and provides for substantial fines and up to life imprisonment for persons convicted of child abuse. Police of the Central Office for the Protection of Minors arrested suspects, referred them to judicial authorities, and provided temporary shelter to survivors of abuse. Courts meted out stiff sentences to persons convicted of crimes against children, but many such cases never reached the courts due to lack of awareness of the law and children's rights, lack of access to courts, fear of police involvement, or a combination of the three.

In September 2022, the government reported an increase in rape cases in the commune of Abomey Calavi in the south of the country. On March 8, 2022, as

part of the celebration of International Women's Day, human rights activists and supporters held a peaceful march to denounce the rise in the incidence of rape and violence GBV in the commune of Abomey Calavi.

Child, Early, and Forced Marriage: The law prohibits marriage of persons younger than age 18 but grants exemptions for children ages 14 to 17 with parental consent and authorization of a judge. According to the *2017-2018 Demographic Health Survey*, 9 percent of women between ages 20 and 24 were married before age 15. Child, early, and forced marriage included barter marriage and marriage by abduction, in which the bridegroom traditionally abducts and rapes his prospective child bride. The practice was widespread in rural areas, despite government and NGO efforts to end it through information sessions on the rights of women and children. Local NGOs reported some communities concealed the practice. The joint government and UNICEF Zero Tolerance for Child Marriage campaign to change social norms and create a protective environment for children in their communities continued.

Sexual Exploitation of Children: The child trafficking law provides penalties for conviction of all forms of child trafficking, including child commercial sexual exploitation, prescribing penalties if convicted of 10 to 20 years' imprisonment. Individuals convicted of involvement in child commercial sexual exploitation, including those who facilitate and solicit it, face imprisonment of two to five years and substantial monetary fines. The child code prohibits child pornography. Persons convicted of child pornography face sentences of two to five years' imprisonment and substantial monetary fines. The law increases penalties for convictions of abuses involving children younger than age 15.

Infanticide, Including Infanticide of Children with Disabilities: Although concealed from authorities, traditional practices of killing breech babies, babies whose mothers died in childbirth, babies considered deformed, and one newborn from each set of twins (because they were considered sorcerers) continued to occur in the north including the communes of Djougou, Gogounou, Kouande, and Kandi. Authorities enforced prohibitions and discouraged the practice through door-to-door counseling and awareness raising.

Institutionalized Children: The government and human rights organizations

reported poorly managed orphanages not compliant with the law governing child protection centers. In August 2021, authorities inspected and closed several orphanages following reports of child abuse and neglect, including an unregistered orphanage in Allada in the south of the country after inspections revealed poor living conditions and insufficient staffing. Additionally, authorities sanctioned an orphanage run by Roman Catholic nuns for using children as beggars to encourage charitable donations.

Antisemitism

There was no known Jewish community, and there were no reports of antisemitic acts.

Trafficking in Persons

See the Department of State's *Trafficking in Persons Report* at <https://www.state.gov/trafficking-in-persons-report/>.

Acts of Violence, Criminalization, and Other Abuses Based on Sexual Orientation, Gender Identity or Expression, or Sex Characteristics

Criminalization: The law does not criminalize consensual same-sex sexual conduct between adults. Nevertheless, a provision related to public indecency and debauchery in the penal code may be applied to prosecute same-sex sexual conduct by charging individuals with public indecency or acts against nature. Prosecutions did not occur during the year.

Violence against LGBTQI+ persons: The president of an LGBTQI+ NGO reported that LGBTQI+ persons faced physical attacks and assaults, verbal abuse, and many other forms of intimidation. He stated that hate-motivated violence targeting LGBTQI+ persons was usually perpetrated by nonstate actors, which police often tolerated. The Constitutional Court ruled in favor of LGBTQI+ victims of police violence in several cases during the year. Nonetheless, a 2021 complaint filed in Ouidah by an NGO regarding an LGBTQI+ person physically assaulted by police in February 2021 had yet to be tried by year's end.

Discrimination: The LGBTQI+ community, especially outside major urban areas, faced hostility. In December 2021, the government's Benin Human Rights Commission, issued a report expressing concern for the rights of vulnerable groups including the LGBTQI+ community, girls and women, persons with disabilities, and persons with albinism.

Although the law prohibits all forms of discrimination, it does not explicitly prohibit discrimination by state or nonstate actors based on sexual orientation, gender identity or expression, or sex characteristics. The law does not recognize LGBTQI+ individuals individually or as a group. Discrimination against LGBTQI+ persons was common. The LGBTQI+ NGO Les Hirondelles estimated that family rejection resulted in more than 100 homeless LGBTQI+ youth annually. The NGO provided temporary shelters for 70 of them. LGBTQI+ persons reported being routinely refused medical care and social services both related (hormone treatment) and unrelated (malaria treatment) to their sexual orientation or gender identity.

Availability of Legal Gender Recognition: Legal gender recognition was not available in the country.

Involuntary or Coercive Medical or Psychological Practices Specifically Targeting LGBTQI+ Individuals: There were no reports of coercive medical or psychological practices targeting LGBTQI+ individuals during the year.

Restrictions of Freedom of Expression, Association, or Peaceful Assembly: There were no reports authorities restricted LGBTQI+ persons from expressing their views or prevented freedom of association or peaceful assembly. Nevertheless, due to social stigma and intolerance, many LGBTQI+ individuals refrained from openly expressing their views. Members of the community reported that they faced verbal abuse on broadcast media.

Persons with Disabilities

Persons with disabilities do not have access to education, health services, public buildings, and transportation on an equal basis with others. The law provides for the protection of the rights of persons with disabilities; however, the government did not fully implement the law. According to the Federation of Associations of

Persons with Disabilities of Benin, persons with disabilities faced discrimination in employment and occupation, housing, health care, access to education, and access to justice. Only 2 percent of children with disabilities attended school. Mobility and access to buildings were problems. Crutches, white canes for the blind, wheelchairs, and prostheses were not provided by the state or affordable for persons with disabilities. Most public buildings were not accessible for persons with disabilities, including bank, school, university, hospital, and court buildings.

The government operated few institutions to assist persons with disabilities. The Ministry of Social Affairs coordinated assistance to persons with disabilities through the Support Fund for National Solidarity. There were no reports of abuse or harassment of persons with disabilities.

The Promotion and Protection of the Rights of Persons with Disabilities Act provides for a wide range of social benefits to persons with disabilities, including improved access to health care, education, vocational training, transportation, and sports and leisure activities. It includes provisions regarding the construction or alteration of buildings to permit access for persons with disabilities. It requires schools to enroll children with disabilities. The government, however, had yet to draft 11 implementing decrees to provide for the Promotion and Protection of the Rights of Persons Disabilities Act to be put into effect.

Other Societal Violence or Discrimination

Police generally ignored vigilante attacks. Incidents of mob violence occurred, in part due to the perceived failure of local courts to punish criminals adequately. Such cases generally involved mobs killing or severely injuring suspected criminals, particularly individuals caught stealing. On September 20, 2022, vigilantes beat to death and burned two suspected robbers in the village of Agon, in the south of the country. Media reported that the two suspects had robbed, beat, and injured a traveler.

Despite government efforts to implement policies to regulate transhumance (the practice of moving livestock seasonally from one grazing area to another), periodic violence between farmers and Fulani herders continued. While several commune-level officials blamed armed Fulani herders from Nigeria for provoking violence

by allowing their cattle to eat farmers' crops, both herders and farmers engaged in violence. There were numerous reported instances of violence similar to the following examples. On June 2, 2022, in the northern village of Tekparou, two farmers were killed in a clash between farmers and Fulani herders. Police subsequently arrested the two herders allegedly responsible for killings. On May 5, 2022, a similar clash occurred in the northern village of Kpaari; four individuals were killed and several wounded.

In June 2021, the government established the High Commission for Herder Settlement in the Office of the President. The commission is mandated to address farmer-herder conflict matters, including the permanent settlement of migratory herders. The commission's effectiveness had yet to be determined.

NGOs focused on protection of persons with albinism reported societal discrimination and abuses, including infanticide of children with albinism, organ trafficking, and inadequate health services.

Section 7. Worker Rights

a. Freedom of Association and the Right to Collective Bargaining

The law provides for the rights of workers, except certain civil servants and public employees, to form and join independent unions with some restrictions. Unions must register with the Ministry of Interior, a three-month process, or risk a fine. The law does not establish clear grounds on which registration of a trade union may be denied or approved, and official registration may be denied without the union having recourse to a court. The law provides that a trade union federation must be made up of at least five enterprise-level trade unions in the same sector or branch of activity. Additionally, the law requires a trade union confederation must be composed of at least three trade union federations of different sectors or branches of activities and that only trade union confederations may have affiliation at a national or international level. There were no reports of significant barriers to international affiliation.

The right to strike is carefully regulated. The law restricts the maximum duration of a strike to 10 days per year for all employees, except workers who are barred

from striking. By law, health-sector staff and military, police, customs, air traffic control, and water, forest and game and wildlife officers are barred from striking. Minimum service is required for workers who carry out essential responsibilities such as judges, prison and justice system personnel, and staff of the sectors of energy, water, maritime and air transport, financial administration, and telecommunication and authorities may requisition workers if minimum services are not provided.

Authorities may declare strikes illegal for reasons such as threatening social peace and order and may requisition striking workers to maintain minimum services. The government may prohibit any strike on the grounds it threatens the economy or the national interest. Laws prohibit employer retaliation against strikers, except that a company may withhold part of a worker's pay following an illegal strike.

The law provides for the rights of workers to bargain collectively. By law, collective bargaining agreements are negotiated within a joint committee including representatives of one or several unions and or representatives of one or several employers' associations. A labor inspector, a secretary, and one or two rapporteurs preside over the committee. The minister of labor has authority to determine which trade unions may be represented in the negotiation at the enterprise level. The minister has the power to extend the scope of coverage of a collective agreement. The law imposes compulsory conciliation and binding arbitration in the event of disputes during collective bargaining in all sectors, "nonessential service" sectors included. The National Permanent Commission for Consultation and Collective Bargaining, and the Social Sector-based Dialogue Committee were active in each ministry to foster dialogue between the government and unions.

The government generally respected the right to form and join independent unions and the right to collective bargaining. The government did not effectively enforce the law, particularly in the informal sector and regarding the provisions on antiunion discrimination and reinstatement. There were reports employers threatened individuals with dismissal for union activity. No violations related to collective bargaining rights were reported. Penalties were commensurate with similar crimes.

b. Prohibition of Forced or Compulsory Labor

The law prohibits forced or compulsory labor, with certain exceptions. The law allows for imprisonment that includes compulsory labor. By law, authorities may exact work not of a purely military character from military conscripts. Laws regarding various abuses relating to the exercise of freedom of expression allow imposition of prison sentences and public service work upon release. Penalties for conviction of forced labor were generally commensurate with similar serious crimes.

The government did not consistently enforce the law, particularly in the large informal sector. Forced labor occurred, including domestic servitude and bonded labor by children. Forced labor was mainly found in the agricultural (e.g., cotton and palm oil), artisanal mining, quarrying, fishing, commercial, and construction sectors. Many traffickers of children were relatives or acquaintances of their victims, exploiting the traditional system of *vidomegon* whereby a child, usually a daughter, is sent to live as a servant with a wealthier family, despite NGO and government efforts to raise awareness of the risks associated with this practice.

The Ministry of Labor conducted child labor inspections throughout the year for apprenticeship agreements, most notably in the construction sector, where they issued warnings and conducted follow up inspections upon discovery of child labor. In some cases, the Ministry of Labor shut down construction operations until contractors complied with forced labor norms.

On June 22, 2022, police intercepted in Come, in southwest Benin, a car transporting 11 children (five girls and six boys) en route to Nigeria for domestic servitude and arrested three suspected traffickers who were accompanying the victims.

Also see the Department of State's *Trafficking in Persons Report* at www.state.gov/trafficking-in-persons-report/.

c. Prohibition of Child Labor and Minimum Age for Employment

The law prohibits the worst forms of child labor. The List of Hazardous Occupations sets the minimum age for employment in hazardous work at age 18.

The list identifies 21 trades prohibited for children and defines 74 related hazardous activities. Specific trades noted on the list include mining and quarrying, domestic service, and agriculture.

The labor code prohibits the employment or apprenticeship of children younger than age 14 in any enterprise; children between ages 12 and 14, however, may perform domestic work and temporary or light seasonal work if it does not interfere with their compulsory schooling. Children 14 and older may be employed as an apprentice in a trade if the apprentice has a formal contract with the tradesperson overseeing the apprenticeship. While apprenticeships are common, contracts are rare. The law bans night work for workers younger than age 18 unless the government in consultation with the National Labor Council grants a special dispensation. Workers younger than 18 are entitled to a minimum 12-hour uninterrupted break including the nighttime period.

The government did not effectively enforce the law. The Labor Office, under the Ministry of Labor, enforced the labor code only in the formal sector. Inspection was inadequate, and the total number of inspections conducted during the year was unavailable. Penalties for those convicted of violating laws in the formal sector were commensurate with similar crimes but were not consistently enforced. There were no reports of prosecutions or convictions during the year.

Despite the government's limited capacity to enforce child labor laws, the government took steps to educate parents on the labor code and prevent compulsory labor by children, including through media campaigns, regional workshops, and public pronouncements on child labor problems. These initiatives were part of the Labor Office's traditional sensitization program. The government also worked with a network of NGOs and journalists to educate the population regarding child labor and child trafficking. The Ministries of Justice and Labor supported capacity building for officials and agencies responsible for enforcing child labor laws.

To help support their families, children of both sexes, including those as young as age seven, worked on family farms, in small businesses, on construction sites in urban areas, in public markets as street vendors, and as domestic servants under the practice of *vidodmegon*. Many rural parents sent their children to cities to live

with relatives or family friends to perform domestic chores in return for receiving an education.

Host families did not always honor their part of the vidomegon arrangement, and abuse and forced labor of child domestic servants were a problem. Children often faced long hours of work, inadequate food, and sexual exploitation, factors indicative of forced labor and exploitation of children in domestic servitude. Sometimes the child's parents and the urban family that raised the child divided the income generated by the child's activities. Up to 95 percent of children in vidomegon were young girls. Several local NGOs led public education and awareness campaigns to decrease the practice.

Most children working as apprentices were younger than the legal age of 14 for apprenticeship, including children working in construction, car and motorbike repair, hairdressing, and dressmaking. Children worked as laborers with adults in quarries, including crushing granite, in many areas. Children were at times forced to hawk goods and beg, and street children were victims of child sex trafficking (see section 6). Children younger than age 14 worked in either the formal or informal sectors in the following activities: agriculture, hunting and fishing, industry, construction and public works, trade and vending, food and beverages, transportation, and other services, including employment as household staff.

Primary education is compulsory for all children between ages six and 11. Children ages 12 to 13 were particularly vulnerable to the worst forms of child labor, as they may have completed primary school but were younger than the minimum legal working age of 14.

Some parents indentured their children to "agents" recruiting farm hands or domestic workers, often on the understanding that the children's wages would be sent to the parents. In some cases, these agents took the children to neighboring countries to work, including Nigeria, Cote d'Ivoire, Togo, and Ghana.

See the Department of Labor's *Findings on the Worst Forms of Child Labor* at <https://www.dol.gov/agencies/ilab/resources/reports/child-labor/findings> and the Department of Labor's *List of Goods Produced by Child Labor or Forced Labor* at <https://www.dol.gov/agencies/ilab/reports/child-labor/list-of-goods>.

d. Discrimination with Respect to Employment and Occupation

The constitution and labor code prohibit discrimination with respect to employment and occupation based on race, color, sex, religion, political opinion, national origin or citizenship, social origin, and disability. The laws, however, do not explicitly prohibit discrimination based on sexual orientation, gender identity, and HIV or other communicable disease status. In general, the government effectively enforced these laws and regulations in the formal sector; however, penalties were rarely applied against violators. Women experienced extensive discrimination because of legal restrictions on working in certain occupations (see section 6) and societal attitudes. Women's wages consistently lagged those of men. According to the International Labor Organization Global Wage Report, in 2017 women on average earned 45 percent less per hour than men. Employment discrimination occurred in the private and public sectors. The prohibitions on discrimination did not apply to the large informal sector.

The labor code includes provisions to protect the employment rights of workers with disabilities, but many experienced discrimination in hiring and access to the worksite.

e. Acceptable Conditions of Work

Wage and Hour Laws: The government set minimum wage scales for several occupations in the formal sector that were slightly higher than the poverty level. On December 8, 2022, the government increased the minimum wage effective January 2023 from 40,000 CFA francs (\$65) per month to 52,000 CFA francs per month (\$85). According to the UN Development Program, 60 percent of the population, predominantly in the informal sector, lived on an income of \$1.90 a day or less, a poverty-level income that is less than the minimum wage.

The government met with trade unions in April 2022 and agreed to increase the minimum wage for private and public sector employees. The change is expected to be implemented by the end of the year.

The labor code sets workweek hours at 40 to 60 hours, depending on the type of work, and provides for paid holidays and at least one 24-hour rest period per week.

The labor code also mandates premium pay for overtime and prohibits excessive compulsory overtime.

The Ministry of Labor and Civil Service and the Ministry of Social Affairs and Microcredit were responsible for enforcement of the minimum wage and hours of work standards. Authorities generally enforced legal limits on workweeks in the formal sector but did not effectively monitor or enforce these standards in the large informal sector. Domestic and agricultural workers frequently worked 70 hours or more per week, above the maximum of 12 hours per day or 60 hours per week provided for by the labor code. Significant parts of the workforce and foreign migrant workers working in the informal sector did not benefit from minimum wage scales.

Occupational Safety and Health: The law establishes appropriate occupational safety and health standards (OSH). Provisions of the law related to acceptable conditions of work apply to all formal-sector workers including migrants. Penalties for violating the labor code were commensurate with those for similar violations.

The Ministry of Labor and the Ministry of Social Affairs and Microcredit were responsible for enforcement of OSH standards. The ministries did not effectively enforce these standards, especially in the large informal sector. The government has authority to require employers to remedy dangerous work conditions but did not effectively do so. Significant parts of the workforce and foreign migrant workers working in the informal sector did not benefit from minimum wage scales. Government efforts were impeded by the insufficient number of labor inspectors and lack of resources to implement inspections. Random inspections were conducted in some sectors, but no information was available on the number of violations identified or convictions of persons tried for violations. The law does not provide workers with the right to remove themselves from dangerous work situations without jeopardy to continued employment.

Violations of OSH standards mostly occurred in informal-sector trades, including hairdressing, dressmaking, baking, mechanics, and carpentry, where workers faced biological, chemical, physical, and psychological risks. Children involved in these trades as apprentices worked long hours and were more vulnerable to hazardous

working conditions. In some mechanical and carpentry shops, children worked near dangerous tools and equipment, and some adults and children lacked adequate protective gear. No data on workplace fatalities and accidents were available.

Wage, Hour, and OSH Enforcement: The Ministry of Labor's labor inspectors are responsible for monitoring labor infractions related to Wage, Hour, and OSH. The government failed to effectively enforce minimum wage, overtime, and OSH laws in the private sector. Penalties were rarely applied against violators. The Labor Code provides for labor inspectors to conduct unannounced inspections. Inspectors generally sought immediate corrective action for minor labor infractions and sometimes ordered payment of compensation for serious violations.

Informal Sector: According to various sources, informal workers accounted for more than 90 percent of workers in the country. Informal workers faced numerous challenges and vulnerabilities, including long working hours, wages below the poverty level, and no social security coverage. They often endured substandard working conditions and were exposed to occupational risks in agriculture, construction, and mining.